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Case Number: 25SMCV06496 Hearing Date: June 30, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

MARTIN KEMPE,

Plaintiffs,

v.

LEON GURVIN, an individual, and MICHAEL

C. BOCK, an individual,

Defendants.

Case No.: 25SMCV06496

Hearing Date: June 30, 2026

[TENTATIVE]

order RE:

defendant'S DEMURRER TO

COMPLAINT

BACKGROUND

This

is a breach of contract case. Plaintiff Martin Kempe ("Plaintiff") claims an interest in the proceeds of the Harold S. Gurvin Trust, which defendant Leon Gurvin ("Leon") resolved in 2025. Defendant Michael C. Bock ("Defendant") represented defendant Leon in the Harold S. Gurvin trust dispute and offered Plaintiff a settlement regarding the interest in proceeds from the trust. Plaintiff altered the settlement agreement and Leon elected not to move forward with settlement.

This

action ensued. On December 18, 2025, Plaintiff filed the original Complaint alleging two causes of action: (1) breach of contract and (2) fraud. On February 27, 2026, the Court sustained Defendant's demurrer to the Complaint and granted Plaintiff leave to amend. On April 7, 2026, Plaintiff filed the First Amended Complaint ("FAC") alleging (1) breach of contract, (2) fraud, and (3) declaratory relief.

This

hearing is on Defendant's demurrer to the FAC, filed May 11, 2026. Defendant argues that (1) Plaintiff's entire complaint fails due to uncertainty; (2) the first cause of action for breach of contract is uncertain and inadequately pled; (3) the second cause of action for fraud is uncertain and inadequately pled; and (4) the third cause of action for declaratory relief is uncertain.

Plaintiffs

filed an opposition on June 17, 2026. Defendant has not filed a reply.

MEET AND CONFER

Code of Civil Procedure section 430.41

requires that before the filing of a demurrer the moving party "shall meet and confer in person or by telephone" with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. §

430.41(a)(2).) Thereafter, the moving

party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc. § 430.41(a)(3).)

Defendant states he met and conferred with Plaintiff's counsel on May 5, 2026, via telephone. (Bock Decl., ¶¶ 4-5.) Defendant declares that Plaintiff's counsel indicated intent to file a second amended complaint, but they did not follow through, and a resolution was not ultimately reached. (Bock Decl., ¶ 5.) Accordingly, the meet and confer requirement has been met.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].)

For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Uncertainty

"A demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made". (Butler v. Sequeira (1950) 100 Cal.App.2d 143, 145-146.) Moreover, demurrers for uncertainty are disfavored and will only be sustained where the pleading is so bad that the defendant cannot reasonably respond, i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif. Inc. (1993) 14 Cal.App.4th 612, 616.)

Defendant argues that the entire FAC is uncertain because it attempts to reference a former Complaint that has been superseded by the FAC and not incorporated as an exhibit. (Mot., p. 7.) Further, Defendant argues that the FAC is unclear and specific allegations are difficult to parse out. (Ibid.) Due to the level of alleged uncertainty, Defendant argues that the pleading is incomplete. (Ibid.)

Here, the FAC is uncertain and does not lay out causes of action alleged against Defendant and Leon. The FAC largely focuses on frustrations and alleged fraud arising from failure to serve Leon with the original Complaint. (FAC, ¶¶ 1-4.) The FAC alleges causes of action for breach of contract, fraud, and declaratory relief but is not specific about which party the causes of action are being asserted against. (See FAC.) Plaintiff sues against both Leon and Defendant but begins the FAC with alleging misrepresentation only against Defendant. (FAC, p. 1.) Additionally, Plaintiff does not identify which facts go to which causes of action. (Ibid.) Defendant cannot reasonably determine from the body of the FAC what issues must be admitted or denied, what claims are directed against him, or parse out any specific causes of action. Moreover, Plaintiff attempts to incorporate the original Complaint and its allegations into the FAC but does not incorporate the original Complaint as an exhibit. (FAC, ¶ 6.) "Amended pleading" means a pleading that completely restates and supersedes the pleading it amends for all purposes. (Cal. Rules of Court, rule 5.74.) Since the FAC completely supersedes the original complaint, the FAC cannot simply refer to the original complaint and allegations therein. Thus, the FAC is incomplete in its allegations and uncertain.

Accordingly, Defendants' demurrer to the entire complaint on the grounds of uncertainty is SUSTAINED with leave to amend.

Breach of Contract

In addition to general uncertainty, Defendants argue that Plaintiff fails to plead facts sufficient to state the cause of action of breach of contract against Defendant. The Court agrees.

To state a cause of action for breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

If a breach of contract claim “is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference”. (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 307.) In some circumstances, a plaintiff may also “plead the legal effect of the contract rather than its precise language.” (Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199.)

Here, the FAC completely omits any facts which allege a cause of action for breach of contract, and fails to attach any written agreement. Thus, in addition to general uncertainty discussed above, the Court finds Plaintiff fails to sufficiently state the cause of action of breach of contract.

Accordingly, Defendant’s demurrer to the breach of contract claim is SUSTAINED with leave to amend.

Fraud

In addition to general uncertainty, Defendants argue that Plaintiff fails to plead facts sufficient to state the cause of action of fraud against Defendant. The Court agrees.

“The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c)

intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) To properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

Here, the FAC largely focuses on alleged misrepresentation. The FAC alleges that Defendant misrepresented that Leon was authorized to settle the claim for interest in the trust account. (FAC, ¶ 1.) The FAC further alleges that Plaintiff detrimentally relied on the promise to settle and did not serve Leon or elect to sue. (Ibid.) The FAC does not allege specific damages resulting from the fraud or Defendant’s knowledge of falsity, thus the FAC does not allege required elements of fraud. Thus, in addition to general uncertainty discussed above, the Court finds Plaintiff fails to sufficiently state the cause of action of fraud.

Accordingly, Defendant’s demurrer to fraud claim is SUSTAINED with leave to amend.

Declaratory Relief

In addition to general uncertainty, Defendants argue that Plaintiff fails to plead facts sufficient to state the cause of action of declaratory relief against Defendant. The Court agrees.

“To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

A cause of action for declaratory relief should not be used as a second cause of

action for the determination of identical issues raised in another cause of action. (General of America Insurance Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.) "The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief" (California Insurance Guarantee Association v. Superior Court (1991) 231 Cal.App.3d 1617, 1624), and a duplicative cause of action is subject to demurrer (Palm Springs Villas II Homeowners Association, Inc. v. Parth (2016) 248 Cal.App.4th 268, 290). Further, "there is no basis for declaratory relief where only past wrongs are involved." (Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC (2010) 191 Cal.App.4th 357, 366, quotation marks omitted.)

Plaintiff

requests that the court declare that Plaintiff has a corresponding lien against Defendant's "IOLTA Account's Attorney Client Trust Funds" in the amount of \$75,000 "subject to the herein Breach of Contract and/or Fraud" causes of action. (FAC, ¶ 7.)

Here, Plaintiff does not demonstrate in the FAC that the relief sought is proper for declaratory relief. Moreover, it is unclear from the allegation in the FAC that Plaintiff's requested declaratory relief is not completely derived of the alleged breach of contract and fraud. It seems that Plaintiff is seeking that the Court declare Plaintiff is entitled to damages resulting from the alleged misrepresentation. Thus, in addition to general uncertainty discussed above, the Court finds Plaintiff fails to sufficiently state the cause of action of declaratory relief.

Accordingly,
the Court SUSTAINS the demurrer to the declaratory relief claim with 20 days' leave to amend.

CONCLUSION AND ORDER

Based on the foregoing, the Court SUSTAINS
the demurrer with leave to amend.

IT IS SO ORDERED.

DATED: June 30, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court